

23STCV30395 23STCV30395

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-06

Motion: DEFENDANT ROYAL LEARNING CENTER, INC'S MOTION FOR RECONSIDERATION OF THE COURT'S ORDER DEEMING MATTERS ADMITTED

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Case Number: 23STCV30395 Hearing Date: August 6, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

ELAINE GIPSON, an individual

Plaintiff,

vs.

ROYAL LEARNING CENTER, INC. a
California Corporation; DIDI DERHERSI, an individual and DOES 1 – 100,
inclusive,

Defendants.

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CASE NO: 23STCV30395

[TENTATIVE] ORDER RE: DEFENDANT

ROYAL LEARNING CENTER, INC'S MOTION FOR RECONSIDERATION OF THE COURT'S ORDER
DEEMING MATTERS ADMITTED

Dept. 731

August 6, 2026

8:30 A.M.

Matter No. 9

Moving Party: Defendant, Royal Learning Center, Inc.

Opposing Party: Plaintiff, Elaine Gipson

Notice: OK

Background Facts

On March 13, 2026, Plaintiff Elaine
Gipson filed (1) a motion to compel initial responses to interrogatories and

production requests (CRS No. 719031415331), and, most pertinent here, (2) a motion to deem as admitted the truth of the matters in Requests for Admission, Set Two, Nos. 20-82 (CRS No. 969057472362), served on Defendant Royal Learning Center, Inc. ("RLC").

On May 4, 2026, Plaintiff filed a notice indicating that RLC had failed to timely serve oppositions to Plaintiff's March 13th motions.

On May 11, 2026, RLC filed oppositions to Plaintiff's March 13th motions.

On May 14, 2026, this Court, under the Honorable Mel Red Recana, ruled on Plaintiff's motions. In relevant part, as to the motion to deem admitted, the Court granted relief, ruling that RLC had failed to file evidence to support its position that it had served Code-compliant responses to the discovery prior to the hearing, noting that RLC had instead filed evidence to show that it had served responses to interrogatories and requests for production. The Court also granted monetary sanctions in the amount of \$1,375.00 as against RLC and its counsel.

Four days later, on May 18, 2026, RLC filed a motion for reconsideration based on the Court's inherent authority to reconsider interim rulings, and requesting that the Court reconsider the May 14, 2026, order vis-à-vis the requests for admission. In its motion, RLC contends that the record shows that the Court erroneously mistook evidence filed by RLC in opposition to Plaintiff's motion to compel initial responses to interrogatories and requests for production (CRS No. 719031415331), as evidence filed on opposition to the motion to deem admitted (CRS No. 969057472362). As relief, RLC's motion seeks vacatur of the May 18th ruling, withdrawal of any sanctions order, acceptance of the May 11th admission responses as the operative responses, and denial of Plaintiff's motion to deem admitted as moot.

Plaintiff filed an opposition on July 24, 2026, and RLC filed a reply on July 30, 2026.

RLC's motion is now before the Court.

Motion for

Reconsideration

Preliminary Matter –

Different Judicial Officer Determined Challenged Order

First, the Court addresses its authority to consider this motion. “Generally, one trial judge may not review the ruling of another trial judge because the superior court, although comprised of many judges, is a single court. [Citation.] This principle, however, does not apply where the original judge is ‘unavailable.’ [Citation.]” (Geddes v. Superior Court (2005) 126 Cal.App.5th 417, 426.) Here, the May 14, 2026, order was made by the Honorable Mel Red Recana, a retired judge serving temporarily as a bench officer for the Los Angeles Superior Court, i.e., a judge “unavailable” for the present motion’s purposes. Accordingly, this Court under its current judicial officer proceeds with an analysis of the motion for reconsideration.

b. Legal Standard

A motion for reconsideration is used to ask the court to modify, amend, or revoke its earlier order on a prior motion to the court because of new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) Such an order may involve an interim or final order (see Code Civ. Proc., § 1008, subds. (e), (h)), where an interim order is an intermediate ruling of some kind that requires further proceedings before the suit can be resolved, and where a final order is an order that finally disposes of the suit (see People v. DeLouize (2004) 32 Cal.4th 1223, 1231 [differentiating between interim and final orders]).

A motion for reconsideration may be brought by a party or by the court on its own motion. (See Code Civ. Proc., § 1008, subds. (a), (c).) The grounds for the motion vary depending on whether a party or the Court is making the motion. (See Code Civ. Proc., § 1008, subds. (a), (c), (e).)

A party may move for reconsideration based on: (1) new or different facts, (Code Civ. Proc., § 1008, subd. (a); see e.g., In re Marriage of LaMoure (2013) 221 Cal.App.4th 1463, 1473 [reconsideration motion granted on new evidence]); (2) new or

different circumstances, (Code Civ. Proc., § 1008, subd. (a)); and (3) new or different law, (Code Civ. Proc., § 1008, subd. (a); *Baldwin v. Home Sav. of Am.* (1997) 59 Cal.App.4th 1192, 1196.) However, a party cannot move for reconsideration based on the court's erroneous order, i.e., the court's misinterpretation of facts or law. (See *Jones v. P.S. Dev. Co.* (2008) 166 Cal.App.4th 707, 724, disapproved on other grounds by *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 531-532, 532 n. 4; *Gilbert v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Instead, a party can suggest to the court that it should reconsider its erroneous order on its own motion so long as the suggestion is not made ex parte. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108; see e.g., *In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 214-15 [emails husband sent to court about erroneous order were not ex parte because wife was copied on all emails].)

In contrast, the Court has statutory authority to reconsider final orders and interim orders based on a change in law. (Civ. Proc., § 1008, subds. (c), (e).)

Further, California courts have a broader constitutional authority to reconsider interim orders that are erroneous that goes beyond Code of Civil Procedure section 1008. (*Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 [courts have constitutional authority to reconsider interim orders]; *Le Francois*, supra, 35 Cal.4th at p. 1108 ["If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief"]; *In re Marriage of Barthold* (2008) 158 Cal.App.4th 1301, 1308 ["Le Francois simply requires that the trial court reconsider a prior ruling based on its own realization that the ruling was erroneous, and not based upon a determination that [an improper] motion to reconsider should itself be granted on its merits"]; see, e.g., *Loeb v. County of San Diego* (2019) 43 Cal.App.5th 421, 425-30 [after denying county's initial and renewed motions for summary judgment based on "trial immunity" defense, trial court did not grant an improper motion for reconsideration—with no new evidence or law—when it considered county's subsequent motion in limine and proposed verdict form on the defense because the court had discretionary authority to refine its legal reasoning after hearing extensive legal argument and taking a brief recess to review relevant authorities]; *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 34 ["[t]rial courts always have discretion to revisit interim orders in service of the paramount goal of fair and accurate decision making"].)

Case law suggests that while California courts generally do not possess a constitutional authority to reconsider erroneous final orders, a court may correct an error in legal reasoning as to a final order subject to appeal but before the time to appeal has expired. (See e.g., *In re Marriage of Spector*, supra, 24 Cal.App.5th at p. 215; *In re Marriage of Barthold*, supra, 158 Cal.App.4th at pp. 1312-1313, 1313, fn. 9.)

Discussion

After review, the Court finds in favor of RLC.

The Court agrees with Plaintiff's opposition argument that the grounds on which RLC brings its motion do not constitute new or different facts, law, or circumstances as were or could have been before the Court on May 18, 2026. (Opposition, pp. 3-4.) However, RLC's notice and points and authorities show that the authority pursuant to which relief is brought is "the Court's inherent power to correct an order that was erroneous." (See, e.g., Motion, 1:27-28 in Notice of Motion.) That authority is broader and in this Court's discretion.

Moving to the merits, a review of the record shows that, when juxtaposing RLC's May 11, 2026, oppositions, and the Court's May 18, 2026, order, it is clear that the Court mistakenly interpreted RLC's opposition to the motion to compel initial responses to interrogatories and production requests (CRS No. 719031415331), as an opposition to the motion to deem as admitted the truth of the matters in Plaintiff's Requests for Admission, Set Two, Nos. 20-82 (CRS No. 969057472362).

Accordingly, relief is proper as to vacating the May 18th order insofar as it deemed the truth of the matters specified in Plaintiff's Requests for Admission, Set Two, admitted as against RLC.

The Court moreover finds that sufficient grounds exist for relieving RLC and counsel of sanctions.

Of note, the Court ruled on May 18,

2026:

Defendant fails to establish that it has served substantially compliant responses prior to the hearing pursuant to CCP §2033.280. Plaintiff's Motion to Compel Discovery Responses is moot, however, in light of Defendant's Exhibit A.

Plaintiff is entitled to mandatory sanctions in connection with the RFAs. However, Plaintiff is entitled to sanctions in connection with the other discovery unless circumstances make imposition of such sanctions unjust. Plaintiff requests \$2,530 in sanctions based on 9.2 hours @ \$275/hr for each Motion.

Defense counsel lost his uncle on January 15, 2026 and then his father on January 30, 2025. (Opposition, Ikonte Dec., ¶¶4-5.) Due to the impact of their deaths on him, he did not notice Plaintiff's counsel's February 19, 2026 email regarding outstanding responses. (Id. at ¶6.)

Based counsel's declaration, the Court awards \$1,375 for the Motion to Deem RFAs Admitted and denies sanctions as to the Motion to Compel Discovery Responses given the personal situation of counsel Ikonte.

(May 18, 2026, Minutes, pp. 6-7.)

Several things are clear from this record.

First, the Court did not review the correct opposition in relation to Plaintiff's admission requests.

Second, the Court accepted RLC's late responses to interrogatories and production requests, and based thereon determined that the other motion Plaintiff filed on March 13, 2026—i.e., to compel initial responses to interrogatories and production requests (CRS No. 719031415331)—was moot. Had the Court reviewed the correct opposition, however, it is possible the Court would have similarly found that Plaintiff's March 13, 2026, motion to deem admitted was also moot (CRS No. 969057472362).

Third, the Court on May 18th noted the unusual, and extremely difficult life circumstances that counsel for RLC was experiencing in life around the time of the May 18, 2026, hearing.

Imposition of sanctions under the above three circumstances would be unjust and provides sufficient basis for this Court to exercise its inherent authority to reconsider the May 18th ruling to deny sanctions.

d. Conclusion

Defendant Royal Learning Center, Inc.'s motion for reconsideration is accordingly GRANTED.

The Court ORDERS the entry of a nunc pro tunc order to the effect that Plaintiff's March 13, 2026, motion to deem admitted, CRS No. 969057472362, is MOOT as to deeming the truth of the matters in the admission requests admitted and DENIED as to monetary sanctions.

Defendant Royal Learning Center, Inc. is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 6, 2026 _____

MARK C. KIM

Judge of the
Superior Court